

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR SEPTEMBER 21, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

*IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.*

THANK YOU.

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| 1.
9:00 AM | MSP-60746 CONSERVATORSHIP OF: PHILIP S NESBIT
PETITION FOR APPROVAL OF THIRD ACCOUNT AND REPORT; PAYMENT OF FEES FILED ON 07/09/26 BY CSC FIDUCIARIES, INC.

Need: <ol style="list-style-type: none">1. Appearances2. Verified declaration to clarify the period of accounting. It appears that the bi-annual accounting of the third account begins within the time period of the second account. Second Account runs 5/1/2022-12/31/2024. Third Account begins May 1, 2024, over seven months prior to the second account ending.3. Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported at the end of the previous accounting period.4. Verified declaration to include ending financial account statement as required by PrC § 2620(c)(2)5. Verified declaration regarding the fair market value schedule at the beginning and ending of the account period as required by PrC §1063(a).6. Revised Proposed Order if needed in resolution of above. |
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2. 9:00 AM	P23-01827 CONSERVATORSHIP OF: WILLIAM JACK ROMAN REPORT OF SALE AND PETITION FOR ORDER CONFIRMING SALE OF REAL PROPERTY FILED ON 06/29/26 BY AUSTIN D. ROMAN Need: 1. Appearances 2. Proof of Publication of notice of sale pursuant to PrC § 10300 3. Proof of Posting. PrC §§ 10308(c), 1230 4. Deposit of 10% of the purchase price or evidence that committed loan proceeds exceed 90% of the purchase price. LR 7.251(a) 5. Counsel to appear. CRC § 7.452. 6. Proof of mailing to purchasers pursuant to PrC § 10308(c) 7. Evidence that spouse has elected into probate. 8. Authority for court to authorize a sale for less than 90% of reappraised value. PrC § 10309(a)(3) Note(s): a. Real property is located at 17115 Holiday Drive, Morgan Hill, CA b. Sale price is \$1,575,000.00. c. Overbid price is \$1,651,250.00. d. Conservatee owns a 50% interest in the real property. e. Reappraisal for Sale filed 7-17-2026 indicates conservatee's ½ interest is \$800,000.00. Sale price includes spouse's 50% interest. f. If granted, court will set a review hearing to ensure deposit of sale proceeds into a blocked account.
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| 3.
9:00 AM | P25-00986 LIMITED CONSERVATORSHIP OF: KALEB DELAMONTANYA
AMENDED PETITION FOR APPOINTMENT OF LIMITED CONSERVATOR OF THE PERSON FILED BY
RACHEL VIRGINIA DELA MONTANYA ON 06/04/2025

Petitioner, mother, still must do the following:
<ol style="list-style-type: none">1. Appear at the hearing2. File a verified declaration showing diligent efforts made to include current addresses of father and paternal grandmother or verified declaration by petitioner showing diligent efforts made to, locate and serve them. CRC 7.523. File Capacity Declaration (Judicial Council Form GC-335) to show whether proposed conservatee lacks capacity to give informed medical consent. PrC § 1890
The Court is waiting for these items:
<ol style="list-style-type: none">a. Appearance by proposed conservatee or waiver by counsel |
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4. 9:00 AM	P25-01962 PETITION FOR APPOINTMENT OF CONSERVATOR OF THE PERSON FILED BY D'ANTOINETTE BURNS ON 11/04/25	LIMITED CONSERVATORSHIP OF: PARRIS MONTRELLE ANDERSON --continued on next page-- Petitioner, mother, still must do the following: 1. Appear at the hearing 2. File a verified declaration to include conservatee's address. Item # 2 is incomplete. 3. File a verified declaration to address Item # 3.g. (whether a conservatorship or equivalent has been filed in another jurisdiction) 4. File a verified declaration to state facts supporting allegation that conservatee is unable to provide for his personal needs. Item # 5.c.(1) is incomplete. 5. File a verified declaration to include current address of father or verified declaration by petitioner showing diligent efforts made to locate and serve him. CRC 7.52 6. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. 7. File a verified declaration to complete petition item # 4.a. (whether proposed conservatee is a patient in or on leave from a state institution under the jurisdiction of Dept. of State Hospitals or Dept. of Developmental Services) 8. File a verified declaration by petitioner to address petition item # 4.b. (whether proposed conservatee is receiving or entitled to receive benefits from the Dept. of Veteran's Affairs) 9. File a verified declaration by petitioner to complete petition item # 4.c. (whether proposed conservatee is a member of a federally recognized Indian tribe) 10. File a corrected Proof of Service of Citation with verification dated by server or waiver by counsel. Proof of Service attached to Citation filed 12-8-2025 is not dated. 11. File a verified declaration to clarify whether you are requesting that proposed conservatee be deemed to lack capacity to give informed consent for medical treatment. Item # 1.g. is incomplete. 12. File Confidential Capacity Assessment and Declaration (Judicial Council Form GC-335) to show whether proposed conservatee lacks capacity to give informed medical consent. PrC § 1890 13. File a verified declaration to address Item # 6.c. on Confidential Conservator Screening Form GC-314. Form filed is incomplete. 14. File a verified declaration by petitioner to clarify that you have attended the orientation class for unlicensed conservators pursuant to LR 7.416 15. File a verified declaration to include Attachments 1.h. and 1.j., not attached as indicated
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16. Submit Order Appointing Probate Conservator Form GC-340 (adopted 1-15-16)

Note:

- a. Report of Court Investigator filed 1/14/2026.
- b. Letters of Temporary Conservatorship issued to petitioner expire 8/6/2026.
- c. Report of court appointed counsel Michael Pierson filed 8/11/2026.

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5A.

9:00 AM

P26-00504

CONSERVATORSHIP OF: ANN MILLER

PETITION FOR APPROVAL OF FIRST AND FINAL ACCOUNTING; TO TERMINATE CALIFORNIA CONSERVATORSHIP; TO TRANSFER ASSETS; FOR PAYMENT OF ATTORNEY'S FEES TO LARA HEISLER FILED BY LIAM LONG ON 7-9-26

Need:

1. Appearances
2. Summary of Account on mandatory Judicial Council Form GC-400/GC-405
3. Inventory and Appraisal filed PrC§ 2610 (due within 4 months of issuance of Letters)
4. Notice of Filing Inventory & Appraisal Form GC-042 filed and Proof of Service.
5. Verified declaration by petitioner to include financial account statement(s) for the beginning of the accounting period and ending of accounting period as required by PrC § 2620(c)(2).
6. Verified declaration in support of court appointed attorney's fees requested as reported. Statement showing services rendered, hours and rates charged so court can evaluate attorney fees reported. LR 70450.
7. Proposed Order

Note(s): Petitioner appointed as Conservator and Guardian in Massachusetts December 4,2024.

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5B.

9:00 AM

P26-00504

CONSERVATORSHIP OF: ANN MILLER

PETITION FOR APPOINTMENT OF CONSERVATOR OF THE ESTATE FILED ON 03/17/26 BY LIAM LONG

Need:

1. Appearances
2. Verified declaration by petitioner to include "Service List" referenced at Item # 11, not attached as indicated
3. Proof of mailing to anyone added by verified declaration, not already served
4. Citation issued, served and returned. PrC §§ 1823, 1824
5. Verified declaration by petitioner to clarify that you have attended the orientation class for unlicensed conservators pursuant to LR 7.416
6. Order Appointing Probate Conservator Form GC-340 (adopted 1-15-16)

The Court is waiting for these items:

1. Ann Miller to appear or doctor's declaration stating inability to appear or waiver by counsel
2. Report of atty. Lara Heisler

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7. **P26-00993** **ESTATE OF: LEA COHEN**
9:05 AM PETITION FOR LETTERS OF ADMINISTRATION W/ IAEA FILED ON 5/27/26 BY ADAM COHEN

Need appearances

Note(s): Proof of Publication incorrectly states that a Will is being admitted. Petition does not request that a Will be admitted and no copies are available for examination at the court. PrC § 8120. Nevertheless, court will accept the publication as being substantially compliant with PrC § 8121.

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8. **P26-00371** **ESTATE OF: RON CLEMENT**
9:05 AM PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA, LIMITED AUTHORITY FILED ON 05/23/26 BY
LAURA DIANE FOWLER

Petitioner, daughter, still needs to do the following:

1. Appear at hearing.
2. File a verified declaration to complete item 3e., why there should be no bond
3. Have waivers of bond filed by all heirs on mandatory form DE-142, if bond is waived.
4. File a declaration clarifying item 3h. as to residency of the proposed representative.
5. File a declaration clarifying item 5b.
6. File a declaration clarifying petition item 7b(1) and b(3). Item b(3) would indicate that item b(1) does not apply.
7. File proof of mailing Notice of Petition to Administer Estate and copy of petition to each heir at least 15 days before the hearing. LR 7.151(e)
8. Have Notice of Petition to Administer Estate DE-121 published and file proof of publication with the Court. PrC § 8120
- 9.

Note(s): Petition for Letters of Administration filed by Kara Clement on 3/27/2026.

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9. 9:30 AM	P26-01355 GUARDIANSHIP OF: MADELEINE CLICK PETITION FOR APPOINTMENT OF GUARDIAN OF THE MINOR PERSON FILED ON 07/20/26 BY CHERYL LYNN HORTON
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Petitioner, mother, needs appointment of guardianship for Estate. Petition for Appointment of Guardian of Estate on calendar 9/30/2026.

Drop.

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10A. **P26-01397** **GUARDIANSHIP OF: JONATHAN VELASQUEZ BARRENO**
9:30 AM PETITION FOR APPOINTMENT OF GUARDIANSHIP OF THE PERSON FILED ON 7/23/26 BY JONATHAN ANTONIO VELASQUEZ BARRENO

Need:

1. Appear at the hearing in person (Zoom not allowed).
2. Proof of personal service of petition and notice of hearing to mother and father or have a signed consent and waiver form by both parents, GC-211; OR if either cannot be found, submit a declaration explaining what efforts have been made to find him/her. CRC 7.52
3. Proof of mailing copy of petition and notice of hearing to maternal grandfather, paternal mother, and all siblings or have each person sign a consent and waiver form, GC-211; OR if a person cannot be found submit a declaration explaining what efforts have been made to locate and serve them. CRC § 7.52.

Court is waiting for:
Report of Court Investigator

Note(s):
Spanish Interpreter requested for hearing.

10B. **P26-01397** **GUARDIANSHIP OF: JONATHAN VELASQUEZ BARRENO**
9:30 AM PETITION FOR SIJF FILED ON 7/23/26 BY JONATHAN ANTONIO VELASQUEZ BARRENO

Need:

1. Appear at the hearing in person (Zoom not allowed).

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11A. **P26-01697** **GUARDIANSHIP OF: JOSE MIRANDA RUIZ**
9:30 AM PETITION FOR APPOINTMENT OF GUARDIAN OF THE PERSON FILED ON 9/08/26 BY JOSE EDUARDO
MIRANDA RUIZ

Need:

1. Appear at the hearing in person (Zoom not allowed).
2. Proposed order appointing guardian, GC-240.

Note(s): Spanish Interpreter requested for hearing.

11B. **P26-01697** **GUARDIANSHIP OF: JOSE MIRANDA RUIZ**
9:30 AM PETITION FOR SIJF FILED ON 09/08/2026 BY JOSE EDUARDO MIRANDA RUIZ

Need:

1. Appear at the hearing in person (Zoom not allowed).
2. Proposed order for SIJF.

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12.

9:31 AM

P25-01720

GUARDIANSHIP OF: MANUEL GONZALES

RE: MOTHER'S FAILURE TO APPEAR AND PROVIDE PROOF OF FUNDS IN BLOCKED ACCOUNT

Need appearance by mother to show cause why she should not be sanctioned for her failure to appear on 3/6/2026, 4/6/2026, 5/20/2026, 6/6/2026, and 7/29/2026 to provide proof of funds deposited in blocked account per order filed 12/5/2025. The Court will consider sanctions of up to 41,500.00, pursuant to CCP § 177.5 for failure to appear, as ordered.

Note(s): Acknowledgement of Receipt of Order and Funds for Deposit in Blocked Account filed 9/2/2026 in the amount of \$132,510.47. Order was in the amount of \$143,000 (approx.)